

**RESOLUTION ADOPTING A SOLAR ENERGY DEVICE INSTALLATION POLICY
FOR
YOWELL RANCH HOMEOWNERS' ASSOCIATION, INC. (the "Association")**

WHEREAS, Texas Property Code §§ 202.010 & 202.011 (or other numbered sections subsequently used to prevent confusion by the enacting of identically numbered, separate provisions) are effective immediately, allowing owners in property owner associations the limited right to install solar energy devices; and

WHEREAS, the Association desires to adopt a resolution setting forth guidelines on the enforcement of its current conditions, covenants, restrictions, and rules, and the installation of solar energy devices.

BE IT RESOLVED, that, to the extent any dedicatory instrument of the Association prohibits the installation of any Solar energy device, as defined by Section 171.107 of the Texas Tax Code (herein, "Device" or "Devices"), the Association shall enforce that restriction only to the extent allowable by law, and therefore adopts the following guidelines as follows:

1. No Device may be installed on property owned or maintained by the Association nor on property owned in common by the members of the Association.
2. All such Devices must receive architectural approval of the Association prior to installation, pursuant to the Conditions, Covenants, and Restrictions of and for the Association and any and all application procedures currently in effect.
3. No such Devices may be installed on an owner's property other than on the roof of the home, or the roof of another structure owned by the owner which is allowed under a dedicatory instrument, or in a fenced yard or patio owned and maintained by the owner.
4. If a Device is mounted on the roof of the home, it may not extend higher than or beyond the roofline.
5. If a Device is mounted on the roof of the home, it must be in the location designated by the Association unless the alternate location increases the estimated annual energy production of the device as determined by using a publicly available modeling tool provided by the National Renewable Energy Laboratory, by more than 10% above the energy production of the Device if located in the area designated by the Association.
6. The Device must conform to the slope of the roof and have a top edge that is parallel to the roofline.
7. The frames, support brackets, and visible piping or wiring must be in a silver, black, or bronze tone commonly available in the marketplace.
8. If the Device is located in a fenced yard or patio, the Device may not be taller than the fence line.

To the extent these guidelines contradict with any previous guidelines, rules, covenants, or restrictions, these guidelines shall control. These guidelines are supplementary and are in addition to any and all other covenants, conditions, restrictions, rules, and guidelines in effect for the Association.

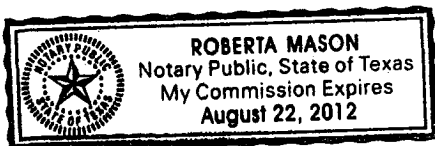
This resolution was passed by a unanimous vote of the Board of Directors of the Association on the date set forth below to be effective immediately.

Executed this the 15th day of Dec, 2011.

By: *Stephen Ashlock*
Name: Stephen Ashlock
Title: President

STATE OF TEXAS)
COUNTY OF Travis)

This instrument was acknowledged before me on this the 15 day of December, 2011, by Stephen Ashlock, President of and for the Association, for the purposes therein expressed.



Roberta Mason
Notary Public, State of Texas

AFTER RECORDING PLEASE RETURN TO:

~~RealManage
10800 Pecan Park Blvd.
Suite 100
Austin, TX 78750~~

*15.00
#5272*

SLATER KENNON & PUGH LTD LLP
ATTN KATY
4807 SPICEWOOD SPRINGS ROAD
BUILDING 2 STE 240
AUSTIN, TX 78759



70 2011 00045069

Bell County
Shelley Coston
County Clerk
Belton, Texas 76513

Instrument Number: 2011-00045069

As

Recorded On: December 29, 2011

Recordings

Parties: YOWELL RANCH HOMEOWNERS ASSOCIATION INC

Billable Pages: 2

To EX PARTE

Number of Pages: 3

Comment: RESOLUTION SOLAR ENERGY

(Parties listed above are for Clerks reference only)

**** Examined and Charged as Follows: ****

Recordings	15.00
Total Recording:	15.00

***** DO NOT REMOVE. THIS PAGE IS PART OF THE INSTRUMENT *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

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Receipt Number: 123401
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SLATER KENNON & PUGH LTD LLP
4807 SPICEWOOD SPRG RD BLDG 2 STE 240
ATTN KATY
AUSTIN TX 78759



I hereby certify that this instrument was filed on the date and time stamped hereon and was duly recorded in the Real Property
Records in Bell County, Texas

Shelley Coston
Bell County Clerk